

in 2022. (SAC, p. 1, 2, 4 and 6.) The causes of action asserted against defendant Boyd allegedly occurred in 2024-2025. (SAC, p. 5, 6.) Defendant also points out that Plaintiff failed to allege compliance with the claim presentation requirements of the Government Claims Act by failing to check the box in Paragraph 9 in the form complaint.

In opposition, Plaintiff asks the Court for leave to amend as he is actively verifying matters related to the Government Claims Act compliance and the identification of the proper public entity defendant, and that such matters are curable by amendment. (Opposition at p. 1: 21-25; p. 2: 17-19; Webster Decl. ¶¶ 2-4.) Plaintiff's Opposition does not argue the merits but rather requests leave to amend. (Opposition generally.)

Here, although Plaintiff requests leave to amend, Plaintiff does not demonstrate, with any authority, how amendment can cure the issue of failure to file a government claim with Contra Costa County. The Court concludes that Plaintiff cannot allege new facts that would cure the failure to comply with the Government Claims Act.

Uncertainty

Uncertainty is a well-established ground of demurrer. (*Martin v. Bank of San Jose* (Cal. App. 1929) 98 Cal. App. 390.) The objection of uncertainty does not go to failure to allege sufficient facts but to doubt as to what the pleader means by the facts alleged. (*Brea v. McGlashan* (1934) 3 Cal. App. 2d 454.) A special demurrer for uncertainty is not intended to reach the failure to incorporate sufficient facts in the pleading but is directed at the uncertainty existing in the allegations actually made. (*Butler v. Sequeira* (1950) 100 Cal. App. 2d 143.) A Complaint is ambiguous and uncertain where it cannot be ascertained therefrom whether acts complained of were committed by defendants in their individual capacity, or in one of other capacities in which they are alleged to have acted. (*Lapique v. Ruef* (1916) 30 Cal. App. 391.)

The SAC lacks specific facts supporting each cause of action against IHSSPA and is also completely devoid of any factual allegations against IHSSPA. The only factual allegations are found within the body of the cause of action against Stacy Boyd. (See SAC at p. 8.) The other five negligence causes of action attachments do not contain any factual allegations and fail to give any notice to IHSSPA of the claims against it. (See SAC at pp. 4-7, 9; *Khoury v. Maly's of California, Inc.* (1993) 14 Cal.App.4th 612, 616.) It is also unclear in what capacities each individual Defendant is being sued under, whether in their individual capacity, capacity as an employee or any other capacity. Thus, all causes of action are also subject to a general demurrer and a special demurrer under Code of Civil Procedure section 430.10.

Conclusion

For the reasons explained above, **the Demurrer is sustained without leave to amend.**

8. 9:00 AM CASE NUMBER: C24-00233

CASE NAME: LOURDES CARRILLO VS. WATERS LAUNDRIES, INC.

***HEARING ON MOTION IN RE: ENFORCE SETTLEMENT AGREEMENT PURSUANT TO CCP 664.6 AND FOR CONTRACTUAL CONSIDERATION PLUS FEES AND COSTS, TOTALING \$7,663.50; MEMORANDUM OF POINTS AND AUTHORITIES**

FILED BY: CARRILLO, LOURDES

TENTATIVE RULING:

Plaintiff Lourdes Carillo moves to enforce a settlement agreement with Defendant Waters Laundries, Inc. Pursuant to the filings from Plaintiff, the Court understands that in November 2024 the parties reached an agreement where Waters Laundries would pay, among other amounts, \$3,000 to Plaintiff Carillo and \$2,000 in attorneys fees to counsel for Plaintiff Carillo for services rendered to her.¹ After provision of Plaintiff Carillo's W-9 form in October 2024 and execution of a final settlement agreement November 26, 2024, there has been no payment of the amounts due. Plaintiff seeks those amounts plus an additional \$2,663.30 for fees and costs arising out of this Motion, pursuant to the settlement agreement itself. The Court received no timely opposition.

Before the Court is a settlement agreement that contains the terms as claimed by Plaintiff's Motion. It appears to be signed by all parties. Plaintiff is therefore entitled to the remedy she seeks. (*See, e.g., Corkland v. Boscoe* (1984) 156 Cal. App. 3d 989, 994.) Given the lack of compliance with the settlement agreement for over one year, the Court will **grant** the Motion to Enforce the Settlement Agreement Pursuant to Code of Civil Procedure Section 664.6. Counsel have demonstrated reasonable hourly rates, hours, and costs expended in seeking to enforce the settlement agreement. **Judgment is entered in the amounts of \$3,000 to Lourdes Carillo, attorneys' fees of \$2,000, and \$2,663.50 in additional costs and fees.**

9. 9:00 AM CASE NUMBER: C24-00530
CASE NAME: JADA BROWN VS. ANTHEM DELIVERY SERVICES LLC, A CALIFORNIA LIMITED LIABILITY COMPANY
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY: ANTHEM DELIVERY SERVICES LLC, A CALIFORNIA LIMITED LIABILITY COMPANY
TENTATIVE RULING:

This case has been reassigned to Department 16 and the matter has been continued by stipulation and order to **November 18, 2026**.

10. 9:00 AM CASE NUMBER: C24-01788
CASE NAME: HICHAM MESNAOUI VS. LAKERIDGE ATHLETIC CLUB
HEARING ON SUMMARY MOTION JUDGMENT
FILED BY: LAKERIDGE ATHLETIC CLUB
TENTATIVE RULING:

Before the Court is a motion for summary judgment, or in the alternative, for summary adjudication filed by defendants Lakeridge Athletic Club and William Worthington. On the Court's own motion, the hearing on the motion is **continued to 9:00 a.m. on March 26, 2026**.

11. 9:00 AM CASE NUMBER: C24-01854

¹ The Court is deducing this provision, given that the settlement agreement indicates attorneys' fees of \$6,000, there were three plaintiffs who were party to the settlement agreement, and counsel seeks \$2,000 as principal payment at this time.